

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1369

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO PLACE OF TRIAL OF CIVIL ACTIONS; REPEALING SECTION 5-404, IDAHO CODE, RELATING TO OTHER ACTIONS, VENUE, AND CERTAIN EXCEPTIONS; AMENDING CHAPTER 4, TITLE 5, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 5-404, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING OTHER ACTIONS, VENUE, AND CERTAIN EXCEPTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [5-404](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 4, Title 5, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 5-404, Idaho Code, and to read as follows:

5-404. OTHER ACTIONS -- VENUE -- EXCEPTIONS. (1) Except as otherwise provided by this chapter or other provisions of law, a plaintiff shall bring an action in the county in which:

(a) The cause of action arises; or

(b) Any defendant resides at the commencement of the action.

(2) If none of the defendants reside in the state of Idaho at the time of the cause of the action, or prior to the filing of the complaint, the action may be brought in any county, which the plaintiff may designate in the complaint.

(3) Actions against life or fire insurance companies may be filed in the county where the death occurred or the loss was sustained.

(4) Actions against any corporation organized under the laws of the state of Idaho shall be filed in any county where the defendant has its principal place of business or in the county in which the cause of action arose.

(5) Nothing in this chapter shall limit the power of the court to change the place of trial, as otherwise provided by law.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.